

IN THE CIRCUIT COURT OF THE  
NINTH JUDICIAL CIRCUIT, IN AND  
FOR ORANGE COUNTY, FLORIDA

CASE NO.

REY RENATO,

Plaintiff,

vs.

FREDDIE TILLMAN and  
CEVA FREIGHT, LLC,

Defendants.

COMPLAINT

COMES NOW the Plaintiff, REY RENATO, by and through his undersigned counsel, and  
sues Defendants, FREDDIE TILLMAN and CEVA FREIGHT, LLC, and alleges:

1. This is an action for damages that exceed Fifteen Thousand Dollars (\$15,000.00),  
exclusive of interest, costs and attorneys' fees.
2. At all times material hereto, Plaintiff, REY RENATO, is a resident of Orange  
County, Florida.
3. At all times material hereto, Defendant, FREDDIE TILLMAN, is a resident of  
Elk Grove Village, Illinois.
4. At all times material hereto, Defendant, CEVA FREIGHT, LLC, is a Foreign  
Limited Liability Company.
5. On or about June 18, 2010, the Plaintiff, REY RENATO, was operating a motor  
vehicle travelling on McCoy Road in Belle Isle, Orange County, Florida.

6. At said time and place, the Plaintiff was stopped for traffic when Defendant, FREDDIE TILLMAN, failed to stop and struck the rear of Plaintiff's vehicle.

7. All incidents giving rise to this action occurred in Orange County, Florida.

**COUNT I – CLAIM AGAINST DEFENDANT, FREDDIE TILLMAN**

8. Plaintiff realleges and incorporates by reference paragraphs one through seven, and further states:

9. At said time and place, Defendant, FREDDIE TILLMAN, was operating a truck owned by Defendant, CEVA FREIGHT, LLC.

10. Defendant, FREDDIE TILLMAN, owed a duty to Plaintiff, REY RENATO, to use reasonable care in the operation of his truck.

11. At said time and place, Defendant, FREDDIE TILLMAN, breached that duty of care when he negligently operated and/or maintained the truck he was operating so that it struck the motor vehicle that Plaintiff, REY RENATO, was operating.

12. As a direct and proximate result of Defendant, FREDDIE TILLMAN's negligence, the Plaintiff suffered bodily injury including a permanent injury to the body as a whole, pain and suffering of both a physical and mental nature, disability, physical impairment, disfigurement, mental anguish, inconvenience, loss of capacity for the enjoyment of life, aggravation of an existing condition, expense of hospitalization, medical and nursing care and treatment, loss of earnings, loss of ability to earn money and loss of ability to lead and enjoy a normal life. The losses are either permanent or continuing and Plaintiff will suffer the losses in the future. Plaintiff's motor vehicle was also damaged.

WHEREFORE, Plaintiff, REY RENATO, demands judgment for damages against Defendant, FREDDIE TILLMAN, and other such relief deemed proper by the Court. Plaintiff also demands a jury trial on all issues so triable.

**COUNT II – CLAIM AGAINST DEFENDANT, CEVA FREIGHT, LLC**

13. Plaintiff, REY RENATO, realleges and incorporates by reference paragraphs one through seven, and further states:

14. Defendant, FREDDIE TILLMAN, owed a duty to Plaintiff to use reasonable care in the operation of his truck.

15. Defendant, CEVA FREIGHT, LLC, is vicariously liable for the negligence of Defendant, FREDDIE TILLMAN.

16. At said time and place, Defendant breached that duty when Defendant, FREDDIE TILLMAN, negligently operated and/or maintained the truck he was operating so that it collided with the motor vehicle in which Plaintiff, REY RENATO, was operating.

17. As a direct and proximate result of the negligence of Defendant, CEVA FREIGHT, LLC, the Plaintiff suffered bodily injury including a permanent injury to the body as a whole, pain and suffering of both a physical and mental nature, disability, physical impairment, disfigurement, mental anguish, inconvenience, loss of capacity for the enjoyment of life, aggravation of an existing condition, expense of hospitalization, medical and nursing care and treatment, loss of earnings, loss of ability to earn money and loss of ability to lead and enjoy a normal life. The losses are either permanent or continuing and Plaintiff will suffer the losses in the future. Plaintiff's motor vehicle was also damaged.

WHEREFORE, Plaintiff, REY RENATO, demands judgment for damages against Defendant, CEVA FREIGHT, LLC, and other such relief deemed proper by the Court. Plaintiff also demands a jury trial on all issues so triable.

I HEREBY CERTIFY that on this 1<sup>st</sup> day of September, 2011, I electronically filed the foregoing with the Clerk of the Court by using the ECF system. I further certify that a copy of the foregoing will be served on Defendant, together with the Summons.

/s/ W. Clay Mitchell, Jr.  
W. Clay Mitchell, Jr., Esquire  
FBN: 0077488  
Morgan & Morgan, P.A.  
20 N. Orange Avenue, 16<sup>th</sup> Floor  
Orlando, FL 32801  
407-420-1414, 407-264-6020  
Attorneys for Plaintiff  
CMitchell@forthepeople.com